



File No.: EXP202211119

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 28, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against BENOTAC, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202211119

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on October 18, 2022. The complaint is directed against BENOTAC, S.L. with NIF B80255425 (hereinafter, the respondent). The reasons for the complaint are as follows:

“(…) the respondent is responsible for an establishment that has a video surveillance system not indicated by the required informative signs of a video surveillance area, also noting that its cameras are capable of capturing images of the public road next to the establishment, without any administrative authorization for this. In addition, it states that a recording from the aforementioned video surveillance system, in which the claimant appears, has been sent to third parties, being disseminated without their consent”—file no. 1-

It provides images of the location of the cameras and a recording from the system where the claimant appears (Evidence Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on 20/10/22, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

THIRD: On 13/12/22, a letter was received from the respondent confirming the presence of camera(s) of video surveillance in the following terms:

“Currently, there are 17 video surveillance cameras, which have been muted (they cannot capture sound). These cameras are distributed between the two facilities belonging to Benotac S.L., the first being at ***ADDRESS.1; the second location is the warehouse located at Ronda de Segovia 44. The viewing of the images is done from two monitors that are kept under lock and password.

At all times, there are informative signs in both locations, explaining that they are video surveillance areas; these can be seen clearly and without difficulty.

Regarding the issue raised by the claimant A.A.A., the complaint arises from their visit to the Benotac S.L. store in October to claim payment of an invoice for services provided to Macberry. During the visit, A.A.A. behaved unpleasantly, and that behavior was recorded by the camera that captures images of the store, in the presence of several customers and employees (...)

Additionally, we provide a declaration of responsibility, in which we state that all equipment that has been replaced with more updated ones has the microphones blocked. Similarly, a new communication was drafted for the employees warning them that they are being recorded for security reasons.”

FOURTH: On December 15, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles

47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

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3/9

II

In the present case, we proceed to examine the claim dated 18/10/22, through which various irregularities of the video surveillance system of the establishment in question are revealed, such as the "absence of an informative sign," as well as the alleged dissemination of video of the claimant "via email to third parties" without justified cause.

Among the images provided by the claiming party, it is observed that at least one device was capturing images of the adjacent public space as it was oriented towards the exterior of the establishment, resulting in the "excessive processing" of third-party data without justified cause.

The responding party should have foreseen that the type of cameras installed is excessive in capturing the physical space of the store, as it affects the transit area of a busy street, and should have proceeded to reinstall them or install another type of less invasive device regarding the privacy and data of passersby.

Article 5.1 c) of the GDPR states the following: Personal data shall be:

"adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, proving that they meet all the requirements established by the applicable regulations.

The installation of such devices must include the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

Furthermore, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps.

It is worth remembering that even in the case of a "dummy" camera, it must preferably be oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who feel intimidated by them under the belief that they are subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or the transit of third parties, except in cases permitted by the regulations.

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4/9

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

III

In accordance with the initial evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the responding party has a poorly oriented video surveillance system that could affect the rights of third

parties and/or public space, processing personal data.

The known facts could constitute an infringement, attributable to the responding party, for violating the content of Article 5.1 c) of the GDPR.

Article 72, paragraph 1, letter a) establishes a limitation period of three years for “infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

“a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.”

IV

Similarly, the images (personal data) obtained were transferred at least to the claimant themselves, without justification for the reason for such transfer, as they are images associated with a system linked to the protection of the establishment, its goods, and belongings.

Article 22, paragraph 3 of the LOPDGDD states: “In such cases, the images must be made available to the competent authority within a maximum period of seventy-two hours from the moment knowledge of the existence of the recording is obtained.”

This fact may imply a violation of Article 5.1 f) of the GDPR in the following terms:

f) processed in such a way as to ensure an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, through the application of appropriate technical or organizational measures (‘integrity and confidentiality’).

The images obtained with such devices must, where applicable, be subject to for their availability to the Security Forces or the competent Court, without an explanation being provided for the reason for access, retention, and transfer at least to the claimant themselves, who presents them to this Agency as evidence.

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5/9

Article 72, paragraph 1, letter a) establishes a limitation period of three years for “infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

“a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

V

Article 83.5 of the GDPR states the following: “Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;

b) the rights of data subjects under Articles 12 to 22 (...).

Article 83.2 of the GDPR states: “Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm suffered;

b) the intentionality or negligence of the infringement (...)

In the present case, it is taken into account when justifying the proposed sanction that it concerns a company (legal entity) that has not duly implemented the technical measures in accordance with the GDPR despite the time elapsed since its entry into force, regardless of the fact that the events must be classified as serious, as the installed devices affect public transit areas, significantly impacting a number of passersby indiscriminately on a busy street in the locality, disproportionately to the purpose

of the system; as well as the transfer to third parties (at least the claimant) outside the legal framework mentioned, which justifies an initial proposed sanction of €2,500, for the infringement of Article 5.1 c) (€500), for the infringement of Article 5.1 f) (€2,000), considering the conduct as gross negligence, with the sanction situated at the lower end of the scale for this type of behavior, taking into account the measures adopted due to the transfer of the present facts.

VII

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

It is noted that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which could motivate such conduct to open a further sanctioning administrative procedure.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity BENOTAC, S.L., with NIF B80255425, for the alleged infringement of Articles 5.1 c), 5.1 f), classified under Article 83.5 letters a) and b) of the GDPR.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided for in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €2,500 (€500 + €2,000), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to BENOTAC, S.L., with NIF B80255425, granting a hearing period of ten working days for it to submit allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; which will entail a reduction of 20% of the sanction.

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7/9

that should be imposed in the present procedure. With the application of this reduction, the penalty would be set at 2000 euros, concluding the procedure with the imposition of this penalty.

Similarly, at any time prior to the resolution of the present procedure, the voluntary payment of the proposed penalty may be made, which will entail a reduction of 20% of its amount. With the application of this reduction, the penalty would be set at 2000 euros and its payment will imply the termination of

the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the penalty is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the penalty would be set at 1500 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the penalty.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above, 2000€ or 1500€, you must make it effective by depositing it into account no. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the bank CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

Additionally, you must send the proof of the deposit to the General Subdirectorato de Inspección to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of nine months from the date of the agreement to initiate or, where appropriate, from the draft agreement to initiate. After this period, it will expire and, consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal is available against this act.

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8/9

SECOND: On June 21, 2023, the respondent has proceeded to pay the penalty in the amount of 1500 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the renunciation of any action or administrative appeal against the penalty and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is warranted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47,

48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

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9/9

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction can be imposed alongside a non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party at any time prior to the resolution will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditional upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202211119, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER BENOTAC, S.L. to notify the Agency within one month of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution.

THIRD: TO NOTIFY this resolution to BENOTAC, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1259-121222

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